

		plaintiff and secured it with a fraudulent deed of trust and deposited the funds into an account with co-defendant JPMorgan Chase Bank. Plaintiff also alleges that the real owner of the property encumbered by the fraudulent deed of trust has contacted it to indicate that the deed of trust is void. Plaintiff has submitted evidence, consisting of the declaration of its CEO and CFO and several exhibits to support its claims. The exhibits include copies of the promissory note executed by defendant John Doe 1 (using the name of the owner of the real property) (Exhibit 2), two checks for payment of interest on the loan drawn on an account with Defendant JPMorgan Chase Bank and signed by Defendant John Doe 1 (using the name of someone else) (Exhibit 3), and a demand letter from an attorney representing the true owner of the real property encumbered by the fraudulent deed of trust and a draft complaint against plaintiff. (Exhibit 3.) Plaintiff has shown that its allegations have merit against defendant John Doe 1 and that it will probably prevail on its causes of action. Plaintiff has also shown that the funds are most likely in a checking account with Co-Defendant JPMorgan Chase Bank. Thus, the balance of the equities favor Plaintiff, and the injunction should be issued to Defendant JPMorgan Chase Bank. Plaintiff has asked that the Court waive the posting of a bond. However, a bond is generally required for a preliminary injunction but may be waived under circumstances where the parties stipulate to the injunction. (<i>Greenly v Cooper</i> (1978) 77 Cal.App.3d 382, 385). Indeed, under subdivision (a) of Code Civ. Proc. § 529, “[o]n granting an injunction, the court or judge must require an undertaking on the part of the applicant to the effect that the applicant will pay to the party enjoined any damages, not exceeding an amount to be specified, the party may sustain by reason of the injunction, if the court finally decides that the applicant was not entitled to the injunction.” The Court will take oral argument regarding the amount of the bond to be posted by Plaintiff.
11.	SEDANO VS. ALL AMERICAN GENERAL BUILDING CONTRACTOR INC. 2024-01418397	MOTION TO TAX COSTS The Motion to Strike or Tax Costs by Defendant All American General Building Contractor, Inc. dba Great American Home Remodel is CONTINUED to 8/25/26, to be heard concurrently with Plaintiff’s motion for attorney fees. The Court must decide the attorney fee motion first in order to determine whether Plaintiff is entitled to expert witness fees as costs. Code Civ. Proc. § 998.)

		Movant’s counsel failed to file proof of service of the motion or reply. (Cal. Rule of Court 3.1300(c).) It appears Plaintiff was served with the motion since an opposition was timely filed. However, Defendant must promptly file proof of service of both the motion and reply. In future, Defendant’s counsel must accompany all filings with proof of service on opposing counsel.
12.	SENTINEL STRATEGIC SERVICES, LLC VS. SOLERA AT APPLE VALLEY COMMUNITY ASSOCIATION, INC. 2024-01399350	MOTION FOR ATTORNEY FEES The Motion for Attorney Fees by Defendant Solera at Apple Valley Community Association is partially GRANTED in the amount of \$14,403.47. The Court grants the motion but reduces the total requested fees/costs of \$19,204.62 by 25% based on the fact that Defendant only prevailed as to six out of Plaintiff’s eight causes of action. <u>Legal Standard:</u> Code of Civil Procedure section 425.16(c)(1) provides, “Except as provided in paragraph (2), in any action subject to subdivision (b), a prevailing defendant on a special motion to strike shall be entitled to recover that defendant’s attorney’s fees and costs. If the court finds that a special motion to strike is frivolous or is solely intended to cause unnecessary delay, the court shall award costs and reasonable attorney’s fees to a plaintiff prevailing on the motion, pursuant to Section 128.5.” However, a party who prevails on an anti-SLAPP motion which is only an “illusory” or “minimal and insignificant” victory with no “practical effect” is not entitled to recover their attorney fees. (See <i>Lin v. City of Pleasanton</i> (2009) 176 Cal.App.4th 408, 425–426; <i>Moran v. Endres</i> (2006) 135 Cal.App.4th 952, 954–955.) <u>Merits:</u> Defendant seeks to recover fees of \$19,204.62 incurred in regard to its anti-SLAPP motion to strike Plaintiff’s complaint, which was granted in part on 12/10/24. The Court of Appeal upheld the partial grant of the anti-SLAPP motion and issued a remittitur on 4/15/26. The Court partially granted moving Defendant’s anti-SLAPP motion as to the 3rd-8th causes of action and denied the motion as to the 1st-2nd causes of action which are based in contract. Defendant obtained a substantial practical benefit from the motion by eliminating Plaintiff’s tort claims. Plaintiff contends the requested fees include the following non-compensable items: “(1) pre-litigation work performed before Plaintiff SENTINEL STRATEGIC SERVICES, LLC (“Plaintiff”) filed its Complaint on May 1, 2024 (ROA, No. 2), which could not have been incurred in connection with the Anti-SLAPP Motion; (2)